

DATA PROCESSING ADDENDUM

This Data Processing Addendum (the "DPA") is entered into as of February 1, 2026 by and between Cloudhaven Technologies, Inc. ("Processor") and Northgate Financial Group, Inc. ("Controller"), and supplements the Software as a Service Subscription Agreement between the parties dated February 1, 2026 (the "Subscription Agreement").

This DPA governs Processor's processing of personal data contained in Customer Data on behalf of Controller in connection with the Service.

1. Definitions and Scope

1.1 "Personal Data" means any information relating to an identified or identifiable natural person contained in Customer Data. "Processing", "Controller", "Processor", and "Data Subject" have the meanings given under applicable data protection law.

1.2 This DPA applies to all Processing of Personal Data by Processor on behalf of Controller under the Subscription Agreement. In the event of a conflict between this DPA and the Subscription Agreement regarding Personal Data, this DPA controls.

2. Roles and Processing Instructions

2.1 Controller is the controller and Processor is the processor of Personal Data under this DPA.

2.2 Processor shall process Personal Data only on documented instructions from Controller, including as set forth in the Subscription Agreement, unless required otherwise by applicable law, in which case Processor shall inform Controller of that legal requirement before processing unless the law prohibits such notice.

3. Confidentiality of Processing Personnel

Processor shall ensure that all personnel authorized to process Personal Data are bound by written confidentiality obligations or are under an appropriate statutory obligation of confidentiality, and that access is limited to personnel who need it to perform the Service.

4. Security Measures

4.1 Processor shall implement and maintain technical and organizational measures aligned with ISO/IEC 27001 and its SOC 2 Type II program, including encryption of Personal Data in transit (TLS 1.2 or higher) and at rest (AES-256), multi-factor authentication for administrative access, role-based access controls, logging and monitoring, and annual penetration testing.

4.2 Processor shall not materially decrease the overall security of the Service during a Subscription Term.

5. Personal Data Breach Notification

Processor shall notify Controller without undue delay, and in any event within forty-eight (48) hours, after becoming aware of a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to Personal Data. The notification shall describe the nature of the breach, the categories and approximate number of Data Subjects affected, the likely consequences, and the measures taken or proposed to address the breach.

6. Subprocessors

6.1 Controller provides general authorization for Processor to engage subprocessors listed at Processor's trust portal. Processor shall give Controller at least thirty (30) days' prior written notice of any intended addition or replacement of a subprocessor.

6.2 Controller may object in writing on reasonable data protection grounds within the notice period; if the parties cannot resolve the objection, Controller may terminate the affected portion of the Service and receive a pro-rata refund of prepaid fees.

6.3 Processor shall impose data protection obligations on each subprocessor that are no less protective than those in this DPA and remains fully liable for its subprocessors' performance.

7. Data Subject Requests

Taking into account the nature of the Processing, Processor shall assist Controller by appropriate technical and organizational measures in fulfilling Controller's obligations to respond to Data Subject requests (access, rectification, erasure, restriction, portability, objection). Processor shall forward to Controller within ten (10) business days any Data Subject request it receives directly and shall not respond to it except to direct the Data Subject to Controller.

8. Audits

8.1 Processor shall make available to Controller information reasonably necessary to demonstrate compliance with this DPA, including its most recent SOC 2 Type II report and ISO/IEC 27001 certificate, which shall satisfy Controller's audit right where they reasonably address the scope of the requested audit.

8.2 Where reports are insufficient, Controller may conduct an audit no more than once in any twelve (12) month period, on at least thirty (30) days' written notice, during business hours, subject to Processor's reasonable security policies, and at Controller's expense.

9. International Transfers

Processor shall not transfer Personal Data outside the country of origin except in compliance with applicable data protection law, including, where required, execution of the applicable standard contractual clauses or reliance on another lawful transfer mechanism. Processor's current hosting regions are listed in the Service documentation.

10. Return and Deletion of Personal Data

Upon termination or expiration of the Subscription Agreement, Processor shall, at Controller's election, return Personal Data in a commonly used machine-readable format or delete it. Absent an election, Processor shall delete all Personal Data within sixty (60) days of termination, except for copies retained in routine encrypted backups, which shall be deleted in the ordinary course and in any event within one hundred eighty (180) days, and except as retention is required by law.

11. Liability

Each party's liability arising out of or related to this DPA is subject to the limitations and exclusions of liability set forth in Section 10 (Limitation of Liability) of the Subscription Agreement, and liability under this DPA and the Subscription Agreement is aggregated, not cumulative.

12. Term and Governing Law

This DPA is effective for as long as Processor processes Personal Data under the Subscription Agreement and terminates automatically upon completion of the deletion obligations in Section 10. This DPA is governed by the law governing the Subscription Agreement (the laws of the State of California), and disputes are subject to the same exclusive jurisdiction.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.